Europäisches Patentamt
European Patent Office
Office européen des brevets

European Patent Office
80298 MUNICH
GERMANY

Questions about this communication?
Contact Customer Services at www.epo.org/contact

Verweij, Petronella Daniëlle
Signify Netherlands B.V.
Intellectual Property
High Tech Campus 7
5656 AE Eindhoven
PAYS-BAS (ROYAUME DES)

Date
08.01.2024

Reference	Application No./Patent No.
2021P80168WE01	22729130.9 - 1201
Applicant/Proprietor	
Signify Holding B.V.	

Communication pursuant to Rules 161(1) and 162 EPC

1. Comments on the written opinion and amendment of the application (R. 161(1) EPC)

The above-mentioned international (Euro-PCT) application has entered the European phase.

The EPO as International Searching Authority and, where a demand under Article 31 PCT was filed, also as International Preliminary Examining Authority has drawn up a written opinion on this application or the EPO as Supplementary International Searching Authority has issued explanations pursuant to Rule 45*bis*.7(e) PCT to the supplementary international search report.

In accordance with Rule 161(1) EPC, you may comment on the written opinion or on the explanations to the supplementary international search report within a **non-extendable period of six months** after notification of the present communication.

Under Articles 28, 41 PCT and Rules 52, 78 PCT the application may be amended before a designated or elected Office, and in accordance with Rule 137(2) EPC the applicant may amend the description, claims and drawings of his own volition together with any comments, corrections or amendments made in response to the communication under Rule 161(1) EPC.

Whether or not you have already done so, you now have a further opportunity to file amended claims or other application documents within the above-mentioned period.

Please note that under Rule 137(2) and (3) EPC as in force from 1 April 2010, you may amend the description, claims and drawings of your own volition in response to this communication, if the international search report has been drawn up on or after 1 April 2010 or the EPO has issued a supplementary international search report. In these cases no further amendments may be made without the consent of the Examining Division. This may be in particular relevant if you have already filed comments/amendments with respect to a written opinion of the International Searching Authority or an international preliminary examination report, or to any explanations pursuant to Rule 45*bis*.7(e) PCT to the supplementary international search report, which however do not address the deficiencies noted therein and you choose not to react to the present communication.

If filing amendments, you must identify them and indicate the basis for them in the application as filed. Failure to meet either requirement may lead to a communication from the Examining Division requesting that you correct this deficiency (R. 137(4) EPC).

The claims applicable on expiry of this period, i.e. those filed on entry into the European phase or in response to the present communication, will form the basis for the calculation of any claims fee to be paid (see p. 2).

Registered Letter

2. Claims fees under Rule 162 EPC

If the application documents on which the European grant procedure is to be based comprise more than fifteen claims, a claims fee shall be payable for the sixteenth and each subsequent claim within the period provided for in Rule 159(1) EPC.

☒ Based on the application documents currently on file, all necessary claims fees have already been paid (or the documents do not comprise more than 15 claims).

☐ All necessary fees will be debited automatically according to the automatic debit order.

☐ The claims fees due for the claims ..... to ..... were not paid within the above-mentioned period.

Any outstanding claims fee, either based on the current set of claims or on any amended claims to be filed pursuant to Rule 161 EPC (see page 1), may still be validly paid within a **non-extendable period of six months** after notification of this communication (R. 162(2) EPC).

If a payment is made for only some of the claims, you must indicate for which claims it is intended. If a claims fee is not paid in due time, the claim concerned is deemed to be abandoned (R. 162(4) EPC).

If claims fees have already been paid, but on expiry of the above-mentioned period there is a new set of claims containing fewer fee-incurring claims than before, the claims fees in excess of those due under Rule 162(2), second sentence EPC will be refunded (R. 162(3) EPC).

The claims fee is currently

EUR 265 for the 16th and each subsequent claim up to the limit of 50
EUR 660 for the 51st and each subsequent claim

Making payments
For payments made via deposit account, please note that as from 1 December 2017 debit orders will only be carried out if filed in an electronically processable format (xml), using an accepted means of filing as laid down in the Arrangements for deposit accounts (ADA), published in the Supplementary publication in the Official Journal.

All relevant information related to the modes of payment of fees to the EPO can be retrieved from the EPO website at " **Making Payments**".

Information concerning fee amounts
Procedural fees are usually adjusted every two years, on even years, with effect from 1 April. Therefore, before making a payment, parties should verify the amounts actually due on the date of payment using the applicable version of the Schedule of fees and expenses, published as a Supplement to the Official Journal of the EPO, available on the EPO website (**www.epo.org**) at **www.epo.org/schedule-of-fees**. The "Schedule of fees" table allows the viewing, downloading and searching of individual fee amounts, both current and previous.

Important note to users of the automatic debiting procedure
Unless the EPO receives prior instructions to the contrary, the fees for all claims incurring fees will be debited on the last day of the period for payment.

For the Examining Division

